

§ 1029. Temporary order of protection. (a) The family court, upon the application of any person who may originate a proceeding under this article, for good cause shown, may issue a temporary order of protection, before or after the filing of such petition, which may contain any of the provisions authorized on the making of an order of protection under section one thousand fifty-six. If such order is granted before the filing of a petition and a petition is not filed under this article within ten days from the granting of such order, the order shall be vacated. In any case where a petition has been filed and an attorney for the child has been appointed, such attorney may make application for a temporary order of protection pursuant to the provisions of this section.

(b) A temporary order of protection is not a finding of wrongdoing.

(c) The court may issue or extend a temporary order of protection ex parte or on notice simultaneously with the issuance of a warrant directing that the respondent be arrested and brought before the court pursuant to section ten hundred thirty-seven of this article.

(d) Nothing in this section shall: (i) limit the power of the court to order removal of a child pursuant to this article where the court finds that there is imminent danger to a child's life or health; or (ii) limit the authority of authorized persons to remove a child without a court order pursuant to section one thousand twenty-four of this article; or (iii) be construed to authorize the court to award permanent custody of a child to a parent or relative pursuant to a temporary order of protection.